

01_master_services_agreement

MASTER SERVICES AGREEMENT

This Master Services Agreement ("Agreement") is entered into on 1 August 2025 (the "Effective Date")

BETWEEN:

Acme Corp, a company incorporated under the Companies Act, 2013, having its registered office at 14 Residency Road, Bengaluru 560025 (the "Client");

AND

BuildrCo Pvt Ltd, a company incorporated under the Companies Act, 2013, having its registered office at 7 Outer Ring Road, Bengaluru 560103 (the "Vendor").

The Client and the Vendor are referred to individually as a "Party" and collectively as the "Parties".

RECITALS

WHEREAS the Client wishes to procure the design, development, and deployment of a customer onboarding platform; and WHEREAS the Vendor represents that it has the expertise, personnel, and capacity to provide such services; NOW THEREFORE, in consideration of the mutual covenants set out below, the Parties agree as follows.

1. DEFINITIONS AND INTERPRETATION

1.1 In this Agreement, unless the context otherwise requires:

"Statement of Work" or "SOW" means a document executed by the Parties under this Agreement describing specific Services, Deliverables, timelines, and fees.

"Deliverables" means the items, materials, software, and outputs to be provided by the Vendor as specified in a SOW.

"Change Order" means a written instrument executed by both Parties amending an SOW or this Agreement pursuant to clause 5.

"Background IP" means intellectual property owned by or licensed to a Party prior to the Effective Date or developed independently of this Agreement.

"Confidential Information" means non-public information disclosed by one Party to the other that is marked confidential or would reasonably be understood to be confidential.

1.2 Headings are for convenience only and do not affect interpretation. References to clauses are to clauses of this Agreement unless stated otherwise. In the event of conflict between this Agreement and an SOW, this Agreement prevails unless the SOW expressly states otherwise.

2. ENGAGEMENT AND SCOPE

2.1 The Client engages the Vendor to provide the services described in one or more SOWs (the "Services"). The Vendor's Project Manager, Ms. R. Iyer, shall be the single point of contact for delivery.

2.2 Each SOW forms part of this Agreement upon execution by both Parties. The first SOW (SOW-01) is executed concurrently with this Agreement.

2.3 The Vendor shall perform the Services with reasonable skill and care and in accordance with good industry practice.

3. TERM

3.1 This Agreement commences on the Effective Date and continues until the completion of all SOWs, unless terminated earlier in accordance with clause 11.

4. FEES AND PAYMENT

4.1 The total fee for SOW-01 is INR 48,00,000 (Indian Rupees Forty-Eight Lakh), payable in three milestones as set out below.

4.2 **Milestone 1** — INR 16,00,000, payable on signing of SOW-01. Payment authorisation: the Client's Head of Procurement.

4.3 **Milestone 2** — INR 16,00,000, payable on completion of the Platform Build Deliverable.

4.4 **Milestone 3** — INR 16,00,000, payable on UAT Sign-Off. Payment authorisation: the Client's Chief Financial Officer.

4.5 Invoices are payable within 30 (thirty) days of receipt. Late payments accrue interest at 1% per month.

4.6 All fees are exclusive of applicable taxes, which shall be borne by the Client.

5. CHANGE CONTROL

5.1 Either Party may request a change to the scope, Deliverables, or timeline of an SOW. No change is binding unless documented in a Change Order signed by authorised representatives of both Parties.

5.2 The Vendor shall, on request, provide a written impact assessment (cost, schedule, and risk) for any proposed change before a Change Order is executed.

6. INTELLECTUAL PROPERTY

6.1 Each Party retains all right, title, and interest in its Background IP. Nothing in this Agreement transfers ownership of a Party's Background IP to the other.

6.2 The Vendor grants the Client a non-exclusive licence to use the Vendor's Background IP solely to the extent necessary for the Client to use the Deliverables.

6.3 The Client shall not reverse engineer or sublicense the Vendor's Background IP except as permitted by law.

7. WARRANTIES

7.1 The Vendor warrants that the Services will be performed in a professional and workmanlike manner and that the Deliverables will materially conform to the specifications in the relevant SOW for a period of 90 days following acceptance.

7.2 Except as expressly stated, the Vendor disclaims all other warranties to the extent permitted by law.

8. LIMITATION OF LIABILITY

8.1 Subject to clause 8.2, each Party's aggregate liability under this Agreement is limited to the total fees paid under the relevant SOW in the 12 months preceding the claim.

8.2 Nothing limits liability for fraud, wilful misconduct, or any liability that cannot be limited by law.

9. CONFIDENTIALITY

9.1 Each Party shall keep the other's Confidential Information secret during the term and for two years after termination, and shall use it only for the purposes of this Agreement.

9.2 Confidentiality obligations do not apply to information that is public through no fault of the receiving Party, or independently developed without reference to the disclosing Party's information.

10. DATA PROTECTION

10.1 Each Party shall comply with applicable laws in performing this Agreement.

11. TERMINATION

11.1 Either Party may terminate this Agreement or any SOW for material breach not cured within 30 days of written notice.

11.2 The Client may terminate any SOW for convenience on 60 days' written notice, in which case the Vendor is paid for Services performed up to the termination date.

12. GOVERNING LAW AND DISPUTE RESOLUTION

12.1 This Agreement is governed by the laws of India.

12.2 Any dispute shall be referred to arbitration in Bengaluru under the Arbitration and Conciliation Act, 1996, before a sole arbitrator appointed by mutual agreement.

13. GENERAL

13.1 This Agreement, together with its SOWs and Change Orders, constitutes the entire agreement between the Parties and supersedes all prior discussions.

13.2 No variation is effective unless in writing and signed by both Parties.

13.3 Neither Party may assign this Agreement without the other's prior written consent.

SIGNED for and on behalf of the Parties:

For Acme Corp: ____ Name: __ Title: __

For BuildrCo Pvt Ltd: ____ Name: __ Title: __